



Bill Number: S.B. 1077

Payne ADD COW Floor Amendment

Reference to: Senate engrossed bill

Amendment drafted by: Leg Council

FLOOR AMENDMENT EXPLANATION

1. Specifies that a person or agent of an enterprise is only in violation of the outlined offense for receiving a benefit if the person or agent has actual knowledge that the specific benefit is derived from the facilitation of an interactive computer service or information content provider that facilitates, promotes or solicits prostitution, pandering or child sex trafficking involving a minor who is 15, 16 or 17 years old.
2. Stipulates that a person or agent of an enterprise is only in violation of the outlined offense if the primary purpose, rather than the purpose, of the person or agent's computer service or information content provider is in violation.
3. Modifies the definition of *interactive computer service* to exclude a service that is primarily engaged in general purpose search indexing, cloud computing or providing advertising services to the general public, cable, video or broadband internet access services or telecommunications services, unless the service is specifically marketed for the promotion of illegal acts of prostitution.
4. Makes conforming changes.

ADDITIONAL COW
PAYNE FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1077
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-705, Arizona Revised Statutes, is amended to
3 read:

4 13-705. Dangerous crimes against children; sentences;
5 definitions

6 A. A person who is at least eighteen years of age and who is
7 convicted of a dangerous crime against children in the first degree
8 involving commercial sexual exploitation of a minor or child sex
9 trafficking and the person has previously been convicted of a dangerous
10 crime against children in the first degree shall be sentenced to
11 imprisonment in the custody of the state department of corrections for
12 natural life. A person who is sentenced to natural life is not eligible
13 for commutation, parole, work furlough, work release or release from
14 confinement on any basis for the remainder of the person's natural life.

15 B. A person who is at least eighteen years of age and who is
16 convicted of a dangerous crime against children in the first degree
17 involving sexual assault of a minor who is twelve years of age or younger
18 or sexual conduct with a minor who is twelve years of age or younger shall
19 be sentenced to life imprisonment and is not eligible for suspension of
20 sentence, probation, pardon or release from confinement on any basis
21 except as specifically authorized by section 31-233, subsection A or B
22 until the person has served thirty-five years or the sentence is commuted.
23 This subsection does not apply to masturbatory contact.

24 C. Except as otherwise provided in this section, a person who is at
25 least eighteen years of age or who has been tried as an adult and who is
26 convicted of a dangerous crime against children in the first degree
27 involving attempted first degree murder of a minor who is under twelve
28 years of age, sexual assault of a minor who is under twelve years of age,

1 sexual conduct with a minor who is under twelve years of age or
2 manufacturing methamphetamine under circumstances that cause physical
3 injury to a minor who is under twelve years of age may be sentenced to
4 life imprisonment and is not eligible for suspension of sentence,
5 probation, pardon or release from confinement on any basis except as
6 specifically authorized by section 31-233, subsection A or B until the
7 person has served thirty-five years or the sentence is commuted. If a
8 life sentence is not imposed pursuant to this subsection, the person shall
9 be sentenced to a term of imprisonment as follows:

<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
13 years	20 years	27 years

12 D. Except as otherwise provided in this section, a person who is at
13 least eighteen years of age or who has been tried as an adult and who is
14 convicted of a dangerous crime against children in the first degree
15 involving second degree murder of a minor who is under fifteen years of
16 age may be sentenced to life imprisonment and is not eligible for
17 suspension of sentence, probation, pardon or release from confinement on
18 any basis except as specifically authorized by section 31-233, subsection
19 A or B until the person has served thirty-five years or the sentence is
20 commuted. If a life sentence is not imposed pursuant to this subsection,
21 the person shall be sentenced to a term of imprisonment as follows:

<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
25 years	30 years	35 years

24 E. Except as otherwise provided in this section, a person who is at
25 least eighteen years of age or who has been tried as an adult and who is
26 convicted of a dangerous crime against children in the first degree
27 involving attempted first degree murder of a minor who is twelve, thirteen
28 or fourteen years of age, sexual assault of a minor who is twelve,
29 thirteen or fourteen years of age, taking a child for the purpose of
30 prostitution, child sex trafficking, **UNLAWFUL USE OF INTERACTIVE COMPUTER**
31 **SERVICE FOR THE PURPOSE OF FACILITATING, PROMOTING OR SOLICITING**
32 **PROSTITUTION**, commercial sexual exploitation of a minor sexual conduct
33 with a minor who is twelve, thirteen or fourteen years of age,
34 manufacturing methamphetamine under circumstances that cause physical
35 injury to a minor who is twelve, thirteen or fourteen years of age or
36 involving or using minors in drug offenses shall be sentenced to a term of
37 imprisonment as follows:

<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
13 years	20 years	27 years

40 A person who has been previously convicted of one predicate felony shall
41 be sentenced to a term of imprisonment as follows:

<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
23 years	30 years	37 years

44 F. Except as otherwise provided in this section, a person who is at
45 least eighteen years of age or who has been tried as an adult and who is
46 convicted of a dangerous crime against children in the first degree
47 involving aggravated assault, unlawful mutilation, molestation of a child,

1 sexual exploitation of a minor, aggravated luring a minor for sexual
2 exploitation, child abuse or kidnapping shall be sentenced to a term of
3 imprisonment as follows:

<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
10 years	17 years	24 years

6 A person who has been previously convicted of one predicate felony shall
7 be sentenced to a term of imprisonment as follows:

<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
21 years	28 years	35 years

10 G. Except as otherwise provided in this section, if a person is at
11 least eighteen years of age or has been tried as an adult and is convicted
12 of a dangerous crime against children involving luring a minor for sexual
13 exploitation, sexual extortion or unlawful age misrepresentation and is
14 sentenced to a term of imprisonment, the term of imprisonment is as
15 follows and the person is not eligible for release from confinement on any
16 basis except as specifically authorized by section 31-233, subsection A or
17 B until the sentence imposed by the court has been served or is commuted,
18 except that if the person is convicted of unlawful age misrepresentation
19 the person is eligible for release pursuant to section 41-1604.07:

<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
5 years	10 years	15 years

22 A person who has been previously convicted of one predicate felony shall
23 be sentenced to a term of imprisonment as follows and the person is not
24 eligible for suspension of sentence, probation, pardon or release from
25 confinement on any basis except as specifically authorized by section
26 31-233, subsection A or B until the sentence imposed by the court has been
27 served or is commuted, except that if the person is convicted of unlawful
28 age misrepresentation the person is eligible for release pursuant to
29 section 41-1604.07:

<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
8 years	15 years	22 years

32 H. Except as otherwise provided in this section, if a person is at
33 least eighteen years of age or has been tried as an adult and is convicted
34 of a dangerous crime against children involving sexual abuse or bestiality
35 under section 13-1411, subsection A, paragraph 2 and is sentenced to a
36 term of imprisonment, the term of imprisonment is as follows and the
37 person is not eligible for release from confinement on any basis except as
38 specifically authorized by section 31-233, subsection A or B until the
39 sentence imposed by the court has been served, the person is eligible for
40 release pursuant to section 41-1604.07 or the sentence is commuted:

<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
2.5 years	5 years	7.5 years

43 A person who has been previously convicted of one predicate felony shall
44 be sentenced to a term of imprisonment as follows and the person is not
45 eligible for suspension of sentence, probation, pardon or release from
46 confinement on any basis except as specifically authorized by section
47 31-233, subsection A or B until the sentence imposed by the court has been

1 served, the person is eligible for release pursuant to section 41-1604.07
2 or the sentence is commuted:

3	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
4	8 years	15 years	22 years

5 I. Except as otherwise provided in this section, a person who is at
6 least eighteen years of age or who has been tried as an adult and who is
7 convicted of a dangerous crime against children in the first degree
8 involving continuous sexual abuse of a child shall be sentenced to a term
9 of imprisonment as follows:

10	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
11	39 years	60 years	81 years

12 A person who has been previously convicted of one predicate felony shall
13 be sentenced to a term of imprisonment as follows:

14	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
15	69 years	90 years	111 years

16 J. The presumptive sentences prescribed in subsections C, D, E, F
17 and I of this section or subsections G and H of this section if the person
18 has previously been convicted of a predicate felony may be increased or
19 decreased pursuant to section 13-701, subsections C, D and E.

20 K. Except as provided in subsections G, H, M and N of this section,
21 a person who is sentenced for a dangerous crime against children in the
22 first degree pursuant to this section is not eligible for suspension of
23 sentence, probation, pardon or release from confinement on any basis
24 except as specifically authorized by section 31-233, subsection A or B
25 until the sentence imposed by the court has been served or commuted.

26 L. A person who is convicted of any dangerous crime against
27 children in the first degree pursuant to subsection C, D, E, F or I of
28 this section and who has been previously convicted of two or more
29 predicate felonies shall be sentenced to life imprisonment and is not
30 eligible for suspension of sentence, probation, pardon or release from
31 confinement on any basis except as specifically authorized by section
32 31-233, subsection A or B until the person has served not fewer than
33 thirty-five years or the sentence is commuted.

34 M. Notwithstanding chapter 10 of this title, a person who is at
35 least eighteen years of age or who has been tried as an adult and who is
36 convicted of a dangerous crime against children in the second degree
37 pursuant to subsection B, C, E, F or I of this section is guilty of a
38 class 3 felony and if the person is sentenced to a term of imprisonment,
39 the term of imprisonment is as follows and the person is not eligible for
40 release from confinement on any basis except as specifically authorized by
41 section 31-233, subsection A or B until the person has served the sentence
42 imposed by the court, the person is eligible for release pursuant to
43 section 41-1604.07 or the sentence is commuted:

44	<u>Minimum</u>	<u>Presumptive</u>	<u>Maximum</u>
45	5 years	10 years	15 years

46 N. A person who is convicted of any dangerous crime against
47 children in the second degree and who has been previously convicted of one

1 or more predicate felonies is not eligible for suspension of sentence, probation, pardon or release from confinement on any basis except as specifically authorized by section 31-233, subsection A or B until the sentence imposed by the court has been served, the person is eligible for release pursuant to section 41-1604.07 or the sentence is commuted.

O. Section 13-704, subsection J and section 13-707, subsection B apply to the determination of prior convictions.

P. The sentence imposed on a person by the court for a dangerous crime against children under subsection H of this section involving sexual abuse may be served concurrently with other sentences if the offense involved only one victim. The sentence imposed on a person for any other dangerous crime against children in the first or second degree shall be consecutive to any other sentence imposed on the person at any time, including sexual abuse of the same victim.

Q. In this section, for purposes of punishment an unborn child shall be treated like a minor who is under twelve years of age.

R. A dangerous crime against children is in the first degree if it is a completed offense and is in the second degree if it is a preparatory offense, except attempted first degree murder is a dangerous crime against children in the first degree.

S. It is not a defense to a dangerous crime against children that the minor is a person posing as a minor or is otherwise fictitious if the defendant knew or had reason to know the purported minor was under fifteen years of age.

T. For the purposes of this section:

1. "Dangerous crime against children":

(a) Means any of the following that is committed against a minor who is under fifteen years of age or against a person posing as a minor if the defendant knew or had reason to know that the purported minor was under fifteen years of age:

(i) Second degree murder.

(ii) Aggravated assault resulting in serious physical injury or involving the discharge, use or threatening exhibition of a deadly weapon or dangerous instrument.

(iii) Sexual assault.

(iv) Molestation of a child.

(v) Sexual conduct with a minor.

(vi) Commercial sexual exploitation of a minor.

(vii) Sexual exploitation of a minor.

(viii) Child abuse as prescribed in section 13-3623, subsection A, paragraph 1.

(ix) Kidnapping.

(x) Sexual abuse.

(xi) Taking a child for the purpose of prostitution as prescribed in section 13-3206.

(xii) Child sex trafficking as prescribed in section 13-3212.

(xiii) Involving or using minors in drug offenses.

1 (xiv) Continuous sexual abuse of a child.
2 (xv) Attempted first degree murder.
3 (xvi) Sex trafficking.
4 (xvii) Manufacturing methamphetamine under circumstances that cause
5 physical injury to a minor.
6 (xviii) Bestiality as prescribed in section 13-1411, subsection A,
7 paragraph 2.
8 (xix) Luring a minor for sexual exploitation.
9 (xx) Aggravated luring a minor for sexual exploitation.
10 (xxi) Unlawful age misrepresentation.
11 (xxii) Unlawful mutilation.
12 (xxiii) Sexual extortion as prescribed in section 13-1428.
13 (xxiv) UNLAWFUL USE OF INTERACTIVE COMPUTER SERVICE FOR PURPOSE OF
14 FACILITATING, PROMOTING OR SOLICITING PROSTITUTION AS PRESCRIBED IN
15 SECTION 13-3213, SUBSECTION B.
16 (b) For the purposes of subdivision (a), items (vi) and (vii) of
17 this paragraph, includes a visual depiction that is indistinguishable from
18 an actual minor who is under fifteen years of age.
19 2. "Predicate felony" means any felony involving child abuse
20 pursuant to section 13-3623, subsection A, paragraph 1, a sexual offense,
21 conduct involving the intentional or knowing infliction of serious
22 physical injury or the discharge, use or threatening exhibition of a
23 deadly weapon or dangerous instrument, or a dangerous crime against
24 children in the first or second degree.
25 Sec. 2. Title 13, chapter 32, Arizona Revised Statutes, is amended
26 by adding section 13-3213, to read:
27 13-3213. Unlawful use of interactive computer service for
28 purpose of facilitating, promoting or soliciting
29 prostitution; classification; definitions
30 A. A PERSON OR AGENT OF AN ENTERPRISE WHO KNOWINGLY CONTROLS,
31 KEEPS, MAINTAINS, MANAGES, OPERATES OR OWNS AN INTERACTIVE COMPUTER
32 SERVICE OR INFORMATION CONTENT PROVIDER IN THIS STATE FOR THE [PRIMARY]
33 PURPOSE OF FACILITATING, PROMOTING OR SOLICITING PROSTITUTION PURSUANT TO
34 SECTION 13-3214, PANDERING PURSUANT TO SECTION 13-3209 OR CHILD SEX
35 TRAFFICKING PURSUANT TO SUBSECTION 13-3212 INVOLVING A MINOR WHO IS
36 FIFTEEN, SIXTEEN OR SEVENTEEN YEARS OF AGE IS GUILTY OF A CLASS 5 FELONY.
37 B. A PERSON OR AGENT OF AN ENTERPRISE WHO VIOLATES SUBSECTION A OF
38 THIS SECTION AND WHO HAS DIRECT KNOWLEDGE OF THE OCCURRENCE OF CHILD SEX
39 TRAFFICKING INVOLVING A MINOR WHO IS UNDER FIFTEEN YEARS OF AGE IS GUILTY
40 OF A CLASS 2 FELONY AND IS PUNISHABLE PURSUANT TO SECTION 13-705.
41 C. A PERSON OR AGENT OF AN ENTERPRISE WHO VIOLATES SUBSECTION A OR
42 B OF THIS SECTION AND WHO KNOWINGLY EXPOSES SEXUAL MATERIAL THAT IS
43 HARMFUL TO MINORS WITHOUT USING REASONABLE AGE VERIFICATION METHODS
44 PRESCRIBED BY SECTION 18-701 TO VERIFY THAT AN INDIVIDUAL WHO ATTEMPTS TO
45 ACCESS THE MATERIAL IS EIGHTEEN YEARS OF AGE OR OLDER IS GUILTY OF A CLASS
46 4 FELONY,

1 D. IT IS A VIOLATION OF THIS SECTION FOR A PERSON OR AGENT OF AN
2 ENTERPRISE TO RECEIVE, AGREE TO RECEIVE OR SOLICIT ANY BENEFIT, INCLUDING
3 SERVICE FEES [. IF THE PERSON OR AGENT HAS ACTUAL KNOWLEDGE THAT THE
4 SPECIFIC BENEFIT IS DERIVED FROM THE FACILITATION OF AN OFFENSE LISTED IN
5 SUBSECTION A OF THIS SECTION].

6 E. IT IS A DEFENSE TO A PROSECUTION UNDER OF THIS SECTION IF A
7 PERSON OR AGENT OF AN ENTERPRISE IS A LAW ENFORCEMENT OFFICER WHO IS
8 ACTING IN THE OFFICER'S OFFICIAL CAPACITY WITHIN THE SCOPE OF THE
9 OFFICER'S AUTHORITY AND IN THE LINE OF DUTY.

10 F. IT IS NOT A DEFENSE TO A PROSECUTION UNDER THIS SECTION THAT A
11 PERSON OR AGENT OF AN ENTERPRISE DOES NOT KNOW THE MINOR IS UNDER EIGHTEEN
12 YEARS OF AGE.

13 G. FOR THE PURPOSES OF THIS SECTION:

14 1. "AGENT" MEANS AN OFFICER, DIRECTOR OR EMPLOYEE OF AN ENTERPRISE
15 OR ANY OTHER PERSON WHO IS AUTHORIZED TO ACT ON BEHALF OF THE ENTERPRISE.

16 2. "INFORMATION CONTENT PROVIDER" MEANS A PERSON OR ENTITY THAT IS
17 RESPONSIBLE, IN WHOLE OR IN PART, FOR CREATING OR DEVELOPING INFORMATION
18 THAT IS PROVIDED THROUGH THE INTERNET OR ANY OTHER INTERACTIVE COMPUTER
19 SERVICE.

20 3. "INTERACTIVE COMPUTER SERVICE"[:

21 (a)] MEANS AN INFORMATION SERVICE, SYSTEM OR ACCESS SOFTWARE
22 PROVIDER THAT PROVIDES OR ENABLES COMPUTER ACCESS BY MULTIPLE USERS TO A
23 COMPUTER SERVER, INCLUDING A SERVICE OR SYSTEM THAT PROVIDES ACCESS TO THE
24 INTERNET AND SYSTEMS OR SERVICES THAT ARE OPERATED OR OFFERED BY LIBRARIES
25 OR EDUCATIONAL INSTITUTIONS.

26 [(b)] DOES NOT INCLUDE A SERVICE THAT IS PRIMARILY ENGAGED IN
27 GENERAL PURPOSE SEARCH INDEXING, CLOUD COMPUTING OR PROVIDING ADVERTISING
28 SERVICES TO THE GENERAL PUBLIC, CABLE, VIDEO OR BROADBAND INTERNET ACCESS
29 SERVICES OR TELECOMMUNICATIONS SERVICES, UNLESS THE SERVICE IS
30 SPECIFICALLY MARKETED FOR THE PROMOTION OF ILLEGAL ACTS OF PROSTITUTION.]

31 4. "INTERNET" HAS THE SAME MEANING PRESCRIBED IN SECTION 41-2671.

32 5. "SERVICE FEES" MEANS THE COSTS THAT ARE ASSOCIATED WITH
33 OBTAINING A PROFILE OR POSTING ADVERTISEMENTS.

34 6. "SEXUAL MATERIAL THAT IS HARMFUL TO MINORS" HAS THE SAME MEANING
35 PRESCRIBED IN SECTION 18-701.

36 Enroll and engross to conform

37 Amend title to conform

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